

Households Size

Policy: Local agency WIC staff must assess and document household size for all applicants and participants.

Regulation: 7 CFR 26.7 (d)(2)

Procedures/Additional Guidance

Family/Household definition: A family/household is defined as a group of related or non-related individuals who usually (although not necessarily) live together and share economic resources and consumption of goods and/or services. Residents of a homeless facility or an institution are not considered members of a single family. Military personnel living overseas or assigned to a military base, even though they are not living with the family, should be considered members of the economic unit when they are sharing financial resources with the household.

• **Foster Child, Adopted Child, and Kinship Placement**

As it relates to WIC eligibility, “foster” children are defined based on who has legal responsibility of the child.

- **Foster Child:** A foster child living with a family but remains the legal responsibility of a welfare or another agency is considered a family of one. The foster child’s income is the amount paid to the foster parent for the child’s care.
- **Adopted Child / Guardianship:** When a family adopts a child or accepts legal responsibility for a child, the child is counted as a member of the family. The family’s size and total income are used to determine the child’s income eligibility for WIC.
- **Kinship Placement:** When a child is placed in kinship care, the legal responsibility of the child can vary:
 - **County Legal Responsibility:** If the county department retains legal responsibility for the child, the child is considered a foster child and counted as a family of one.
 - **Caregiver Legal Responsibility:** If the kinship caregiver has legal responsibility for the child, the child is counted as a member of the family. If the child is an infant, their Medicaid can be used to income qualify the household under adjunctive eligibility since the kinship caregiver is responsible for applying for Medicaid.
- **Documentation Requirements:** For foster, kinship, and adoption/guardianship situations, request foster papers or guardianship documentation. Scan and attach these documents to the Compass record.
- **Pregnant woman:** An income assessment should be conducted counting a pregnant woman as a household size of one first. If she is over income, then the agency can increase the household size by the number of fetuses in utero with the mother’s permission.
- **Joint custody:** A child that lives in more than one home as a result of a joint custody situation shall be considered as part of the household of the parent/guardian who is applying for WIC on behalf of the child. A child may only receive benefits as part of one household or family.
- **Child support:** If a family pays child support for a child that does not live with them, the child may NOT be considered as part of the household (unless the child lives in an institution or school). The family also may not deduct the cost of the child support when reporting their gross income to WIC.
- **Child in school/institution:** A child who lives in a school or institution, and the child’s support is being paid for by the parent or guardian, the child may be counted in the family size of that parent/guardian.
- **Minor:** The final decision of whether a minor is emancipated and thus a separate economic unit for WIC Program purposes is whether or not the minor is living as a separate household without any economic support from any other persons in the household. If the minor receives any support for which she does not pay, such as shelter or meals, she should not be considered a separate household. For example, if the minor has a separate apartment with a kitchen in the family’s home and the minor pays all expenses for her own support; it is possible that the minor may then be considered a separate household.
- **More than one family in a house:** When two separate families live under the same roof determining household number is important to determine the economic independence of the family applying for WIC. he



income they report must be sufficient to cover their living expenses (i.e., food, clothing, and daycare). Financial resources and support must be retained separately. (See related policy in *Special Populations section, WIC Program Services to the Homeless.*)

- **Temporary living situation:** If an individual who meets the definition of homeless is living temporarily in a shelter or friend's home, he/she can be considered a separate economic unit. If after 365 days the participant continues to live in the same place, then the entire household is considered an economic unit and the total household income should be used for WIC screening.
- **Deployed military service member:** Military personnel living overseas or assigned to a military base, even though they are not living with the family, should be considered members of the economic unit when they are sharing financial resources with the household. When a military individual is counted as a member of the economic unit, their income must also be included in the economic unit.
- **Children in Temporary Care of Friends or Relatives:** When financial information is known for the child (e.g. child in military family unit) then this information can be used. The child would be considered a part of the original family unit. When the family unit's financial information is not available and the parent/s send adequate money to the family caring for the child, then the child can be considered a household of one. If there is no financial information available from the parent/s of the child's previous economic unit and the new family receives little to no financial support to provide care for the child, then the child is considered part of the economic unit where the child now lives.

Examples:

- ✓ A pregnant woman and her one child live with the woman's boyfriend and his two children. They share food, utility, and rental expenses. The woman has a job and receives child support for her child. The boyfriend has a job. In this case, the economic unit is 5. Income for both adults plus the child support must be included in the income determination. If the family is over income, then the agency can increase the household size by the number of fetuses in utero with the mother's permission.
- ✓ A woman who is not categorically eligible for WIC lives in a house with her two children (one applying for WIC), and the grandmother. The woman is employed and the grandmother receives social security. They share food and other expenses. The economic unit is 4. The woman's income plus the grandmother's social security need to be included in the income determination.
- ✓ A pregnant woman lives with her parents and her younger sister. The pregnant woman is unemployed. Both parents are employed as is the younger sister. The parents provide for all expenses except that the younger sister contributes money for groceries. The economic unit is 4. The income of both parents and the sister need to be included in the income determination. If the family is over income, then the agency can increase the household size by the number of fetuses in utero with the mother's permission.
- ✓ A pregnant woman and her daughter live in the woman's parent's house. The pregnant woman is employed and provides the food, clothing, and other living expenses for herself and her daughter. The parents do not provide any money, and do not share income or food with their daughter or her child. The economic unit is 2 (pregnant woman counts as 2). Only the pregnant woman's income needs to be considered in the income determination. Even though the parents provide "housing" this is not considered income, but is considered an "in-kind" benefit. If the family is over income, then the agency can increase the household size by the number of fetuses in utero with the mother's permission.